

		The parties/counsel are ORDERED to engage in additional attempts to meet and confer in person, telephonically, or over remote videoconferences (not email) no later than May 9, 2025. The parties/counsel are ORDERED to file a JOINT STATUS REPORT indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why, no later than 9 court days before the hearing. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to <i>Code of Civil Procedure</i> section 177.5. The parties are strongly encouraged to resolve their discovery dispute without the need for court intervention. Plaintiff to give notice.
10	Biofire Diagnostics LLC vs. Pathlab Services Inc. 2022-01262822	Motion for Sanctions for Failure to obey Court Order Plaintiff/Cross-Defendant BioFire Diagnostics’ Motion for Sanctions is GRANTED in part and DENIED in part. Terminating sanctions are GRANTED against Defendant/Cross-Complainant PathLab Services, Inc. PathLab’s Cross-Complaint is dismissed and its answer to BioFire’s Complaint is stricken. The court may impose monetary, issue, evidence, or terminating sanctions on a party who misuses the discovery process. <i>Code of Civil Procedure</i> § 2023.030(a)-(d).) Failing to respond to discovery and disobeying a court order are misuses of the discovery process. <i>Code Civ. Proc.</i> § 2023.010(d)(g). Here, PathLab has failed to provide responses and pay the sanction as ordered by this Court on 7/15/24. Thus, PathLab has failed to respond to discovery and disobeyed a court order. Therefore, PathLab’s conduct is sanctionable. <u>Nonmonetary Sanctions</u> PathLab’s conduct warrants nonmonetary sanctions. PathLab has not responded to either the Motion to Compel or this Motion. Monetary

	sanctions failed to compel any action from PathLab, thus, nonmonetary sanctions are appropriate. Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” <i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal.App.4th 262, 279. “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.” <i>Lee v. Lee</i> (2009) 179 Cal.App.4th 1553, 1559. PathLab’s counsel was present at hearing on 7/15/24 when the Court ordered PathLab to provide responses and pay sanctions. (ROA 135.) Counsel was also served with the ruling. (ROA 137.) Thus, PathLab knew of the order and failed to comply. Its failure to comply with this Court’s order is willful. Additionally, PathLab has failed to communicate with Biolab’s counsel since 2023. (Stockstill Decl., ¶¶ 11-12.) Further, PathLab has not opposed this Motion seeking terminating sanctions. If the threat of terminating sanctions being imposed did not compel PathLab to participate in this action, less severe sanctions would not compel compliance. Therefore, terminating sanctions are appropriate. Accordingly, the Court dismisses PathLab’s Cross-Complaint and strikes its answer to the Complaint. <u>Monetary Sanctions</u> “[S]anctions may not be imposed solely to punish the offending party.” <i>Kwan Software Engineering, Inc. v. Hennings</i> (2020) 58 Cal.App.5th 57, 75. Imposing additional monetary sanctions where the answer to the complaint is stricken and the cross-somplaint is dismissed would serve no useful purpose. Thus, Biolab’s request for monetary sanctions is denied. Moving party to give notice.
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11	Chavos & Rau, APLC vs. USA National Title Company Inc. 2019-01085921	Defendant/Appellant's Motion to Use a Settled Statement Defendant/Appellant USA National Title Company, Inc.'s (Defendant) Motion to Use a Settled Statement is DENIED. Defendant moves for an Order permitting the use of a Settled Statement on appeal instead of a Reporter's Transcript, pertaining to the oral proceedings which comprised pre-trial motions, trial proceedings, and post-trial motions. Defendant also moves the Court for a deadline for submitting the proposed Settled Statement. Under California law, "[a] settled statement operates to make up for the absence of a reporter's transcript of oral proceedings, and not to supply what was omitted from those proceedings." <i>Quintero v. Tilton</i> (C.D. Cal. 2008) 588 F.Supp.2d 1121, 1128 fn. 5 [citing <i>People v. Griffin</i>, 33 Cal.4th 536 (2004) 554 n. 4 (citations omitted)]. "[T]he purpose of a settled statement is to provide the appellate court with a record of trial court proceedings for which there is no formal contemporary record, commonly because the court reporter's notes have been lost ... or because a court reporter was not present to record the proceedings.... In other words, the settled statement is used for filling 'gaps in the [appellate] record.... Consistent with this limited purpose, the settled statement is 'intended to ensure that the record transmitted to the reviewing court preserves and conforms to the proceedings actually undertaken in the trial court,' not to 'allow parties to create proceedings, make records, or litigate issues which they neglected to pursue earlier.'" <i>People v. Anderson</i> (2006) 141 Cal.App.4th 430, 440. This motion to use Settled Statement is brought under <i>California Rules of Court</i>, Rule 8.137. Defendant seeks to use a Settled Statement as the designated oral proceedings were not reported by a court reporter. Under <i>CRC</i> Rule 8.137, Defendant did not need to file the instant Motion. Pursuant to Rule 8.137(a)(1), Defendant simply needed to indicate in the notice designating the record on appeal that it wanted to use a settled statement as the record of the oral proceedings, which Defendant did. (ROA 846).
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